

under seal or not, cannot be enforced on the mere ground of meritorious consideration (*e*).

31. No trust unless there be an intention to create one. — It is obviously essential to the creation of a trust, that there should be the *intention* of creating a trust, and therefore if upon a consideration of all the circumstances the Court is of opinion that the settlor did not mean to create a trust, the Court will not impute a trust where none in fact was contemplated (*f*).

Field v. Lonsdale. — Thus, where a person, having deposited in a savings bank as much money in his own name as the rules allowed, deposited a further sum in his name as trustee for his sister, but without making any communication to her; and it appeared that he made such deposit with a view of evading the rules of the bank, and not to benefit his sister; and by the act of parliament he retained the control of the fund; the Court held that no trust was created (*g*). So, if a person indorse and hand over promissory notes with the intention of making a testamentary disposition, the transaction does not create a trust *inter vivos* (*h*).

32. Money scrivener. — As the business of a money scrivener is now almost obsolete, and the looking for and procuring investments for the money of clients on landed security is now commonly transacted by solicitors, if a sum of money be placed by a client in the hands of * a solici- [*83] tor for investment, the mere deposit will not *per se* create the relation of trustee and *cestui que trust* between the solicitor and the client (*a*).

33. [Special credit. — A letter of advice that a special credit for a particular sum has been opened with the person writing the letter in favour of the person to whom the letter

(*e*) *Jefferys v. Jefferys*, 1 Cr. & Ph. 138; *Antrobus v. Smith*, 12 Ves. 39; *Evelyn v. Templar*, 2 B. C. C. 148; *Holloway v. Headington*, 8 Sim. 324; *Joyce v. Hutton*, 11 Ir. Ch. Rep. 123. *Ellis v. Nimmo, Lloyd & Goold*, t. Sugd. 333, must be considered as overruled.

(*f*) See *Gaskell v. Gaskell*, 2 Y. &

J. 502; *Hughes v. Stubbs*, 1 Hare, 476; *Smith v. Warde*, 15 Sim. 56.

(*g*) *Field v. Lonsdale*, 13 Beav. 78; and see *Davies v. Otty*, 33 Beav. 540.

(*h*) *Re Patterson's Estate*, 4 De G. J. & S. 422; and see *Kennard v. Kennard*, 8 L. R. Ch. App. 230.

(*a*) *Mare v. Lewis*, 4 I. R. Eq. 219.